

LEGISLATURE OF NEBRASKA
ONE HUNDRED NINTH LEGISLATURE
SECOND SESSION

LEGISLATIVE BILL 1164

Introduced by Lonowski, 33; Juarez, 5; Lippincott, 34; Meyer, G., 17.

Read first time January 20, 2026

Committee:

- 1 A BILL FOR AN ACT relating to postsecondary education; to adopt the Prior
- 2 Learning Act.
- 3 Be it enacted by the people of the State of Nebraska,

1 **Section 1.** Sections 1 to 6 of this act shall be known and may be
2 cited as the Prior Learning Act.

3 **Sec. 2.** For purposes of the Prior Learning Act:

4 (1) Commission means the Coordinating Commission for Postsecondary
5 Education;

6 (2) Cut score means the minimum score an individual is required to
7 achieve on a prior learning examination to receive postsecondary credit
8 from a Nebraska public postsecondary institution;

9 (3) Nebraska public postsecondary institution has the same meaning
10 as in section 85-2403; and

11 (4) Prior learning examination means a postsecondary level
12 examination approved by the Coordinating Commission for Postsecondary
13 Education pursuant to section 3 of this act to assess whether a student,
14 prior to taking a postsecondary course, has already obtained knowledge
15 and skills at a level substantially similar to what is expected from a
16 student who has successfully completed a postsecondary course on the same
17 subject.

18 **Sec. 3.** (1) On or before September 1, 2026, the commission shall
19 approve a list of prior learning examinations and the cut score for each
20 such examination. The list shall include commonly recognized prior
21 learning examinations, including, but not limited to:

22 (a) Prior learning examinations that are associated with
23 participation in high school courses specifically designed to prepare
24 students for such examinations;

25 (b) Prior learning examinations that are associated with
26 participation in high school courses using international curriculum
27 frameworks; and

28 (c) Prior learning examinations that are not associated with high
29 school courses endorsed by the provider of the prior learning
30 examination.

31 (2) The commission shall set cut scores in a manner consistent with

1 national practices and shall consult recommendations for such cut scores
2 contained in any comprehensive guide maintained by a national
3 organization recognized for expertise on the topic of appropriate cut
4 scores for prior learning examinations in the context of awarding
5 postsecondary academic credit.

6 (3) The commission shall update the list of prior learning
7 examinations and cut scores as necessary to provide options for students
8 while maintaining the academic integrity of the Nebraska public
9 postsecondary institutions.

10 (4) The commission shall post and maintain the list of prior
11 learning examinations and cut scores on the commission's website in a
12 location accessible to prospective postsecondary students and families.

13 **Sec. 4.** (1) On or before October 1, 2026, each Nebraska public
14 postsecondary institution shall develop and implement written policies
15 and procedures for awarding academic credit based on prior learning
16 examinations. The policies and procedures shall:

17 (a) Except as otherwise provided in this section, award academic
18 credit to students for each distinct prior learning examination for which
19 the student met or exceeded the cut score;

20 (b) Prioritize application of credit toward courses that meet
21 general education, major, or degree requirements over application of
22 credit towards courses that are elective for the student;

23 (c) Establish the process through which credits awarded under this
24 section shall be recorded on transcripts and transferred to other
25 Nebraska public postsecondary institutions; and

26 (d) Ensure that policies and procedures are publicly posted on the
27 institution's website in a location accessible to prospective students
28 and families.

29 (2) With approval from the commission, a Nebraska public
30 postsecondary institution may require a higher minimum score than the cut
31 score approved by the commission pursuant to section 3 of this act if the

chief academic officer of such institution determines, based on evidence of student performance or course success rates, that a higher score is necessary for success in a specific course or sequence. Such justification shall be documented and submitted to the commission as part of the request for commission approval of the higher minimum score.

(3) On or before October 15, 2026, each Nebraska public postsecondary institution shall submit its policies and procedures adopted under this section to the commission. The commission shall compile all such policies and procedures and post a statewide summary on the commission's website, including the justification for any higher minimum score requirements approved by the commission pursuant to subsection (2) of this section.

Sec. 5. (1) On or before December 31, 2027, and on or before December 31 of each year thereafter, each Nebraska public postsecondary institution shall submit an annual report to the commission including:

(a) The number of students awarded academic credit based on prior learning examinations during the preceding academic year;

(b) The total number of academic credits awarded based on prior learning examinations;

(c) For students who graduate from the institution, the number of such credits applied toward:

(i) General education;

(ii) Major or degree program requirements; and

(iii) Elective credit; and

(d) Any additional information the commission determines necessary to assess the implementation and impact of this act.

(2) The Commission shall annually compile the reports received under subsection (1) of this section and electronically submit a summary to the Education Committee of the Legislature and make such summary publicly available on the commission's website.

Sec. 6. The commission may adopt and promulgate rules and

1 regulations as necessary to carry out the Prior Learning Act.